

HEADNOTE

“1. The subject matter of an invalidity action before the Unified Patent Court is determined not only by the grounds for invalidity put forward pursuant to Art. 138.1 EPC, but also by the prior art and arguments advanced in support of the invalidity.

2. The standing required by Art. 47.6 UPCA for invalidity actions must be interpreted broadly. A distinction must be made between private and commercial activity, as shown by Art. 27(a) UPCA. Since legal entities cannot act "privately", their activities must always be classified as commercial. Legal entities generally always have standing within the meaning of Art. 47.6 UPCA. They have a fundamental interest in ensuring that patents which should not have been granted on account of a ground for invalidity are not upheld. This applies regardless of whether they are already active in a relevant sector.”

COURT

PROCEEDINGS

Action for revocation

PATENT

EP 2223589

Beet enclosure with a lockable sheet metal strip

KEYWORDS

Standing (being concerned by a patent)

Parallel proceedings

Straw man/sham party

Patent claim interpretation

Prior publication

Prior use

Late-filed submissions

UPC_CFI_860/2025, He

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SUMMARY

The Unified Patent Court ruled on an action for revocation. The patent at issue relates to a beet enclosure with a lockable sheet metal strip. According to the headnotes of the decision, the scope of an invalidity action is shaped not only by the specific grounds for invalidity cited under Article 138.1 EPC, but also by the prior art evidence and supporting arguments presented by the claimant. The Court interpreted the standing requirements for invalidity actions broadly, establishing that legal entities, which cannot engage in purely private activities, generally possess standing to challenge patents regardless of whether they operate in the relevant technological sector, provided they have a legitimate interest in preventing the grant of invalid patents.